The Courts

POLS 2311: Government of the United States

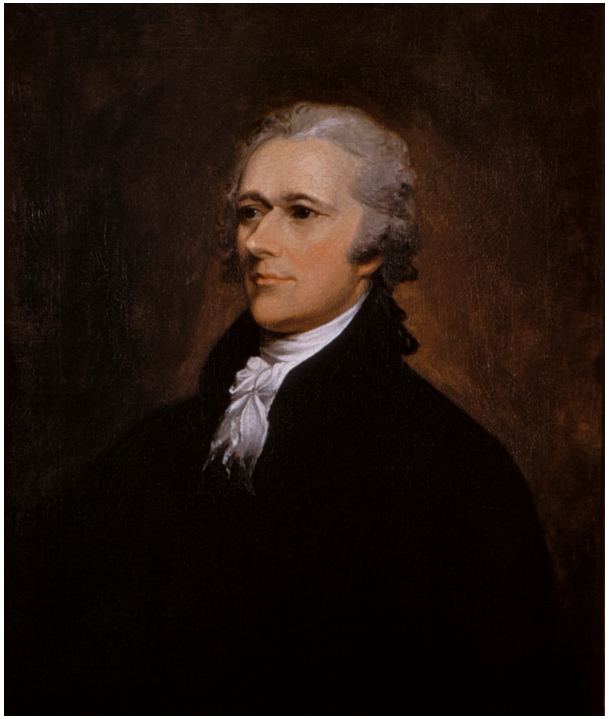
Agenda

- Judicial Power
- The Supreme Court

The Judiciary

Federalist 78, Hamilton

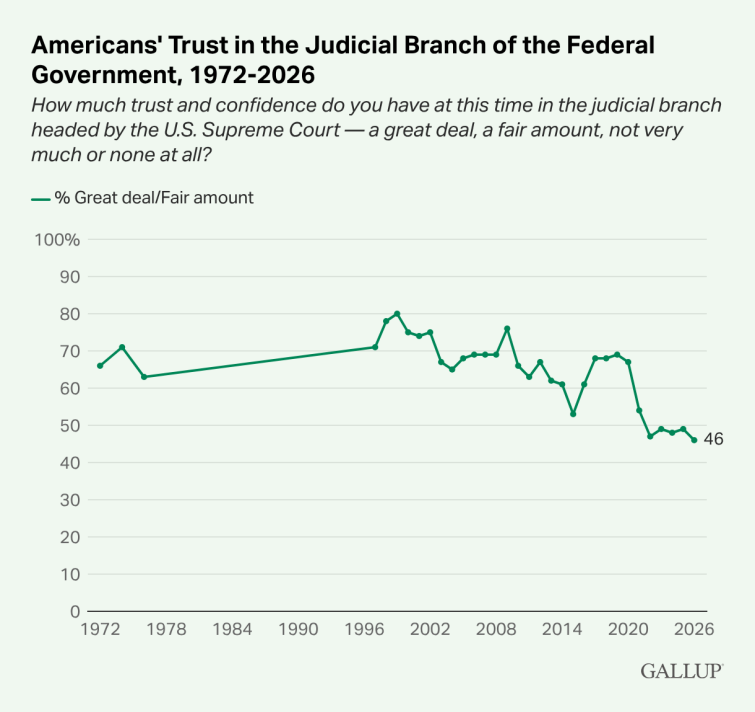
The judiciary, from the nature of its functions, will always be the ***least dangerous*** *to the political rights of the Constitution … The judiciary … has no influence over either the sword or the purse, no direction either of the strength or of the wealth of the society, and can take*



The Courts

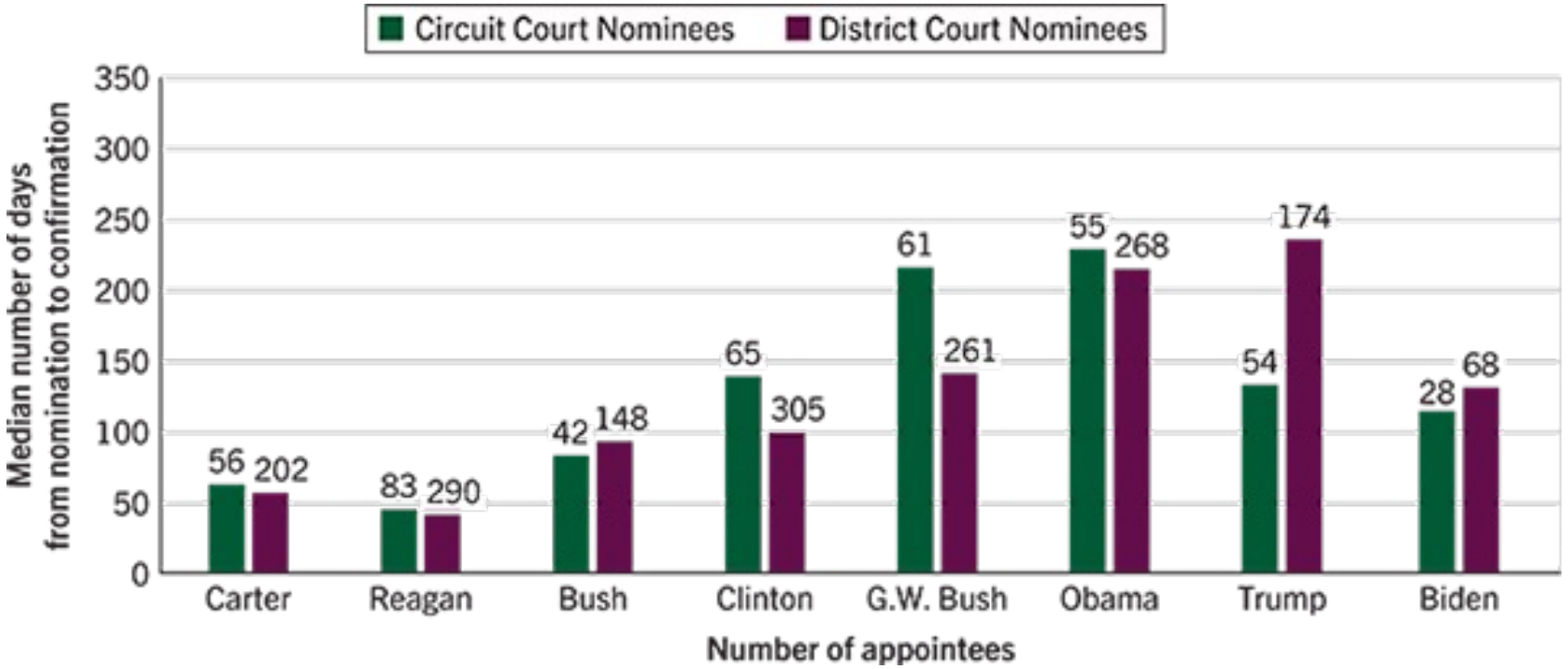
- The U.S. courts pride themselves on two achievements:
  - As part of the Framers' system of checks and balances, they protect the sanctity of the U.S. Constitution from breaches by the other branches of government
  - They protect individual rights against societal and governmental oppression
    - The courts consider *specific cases* with narrow questions

Public Opinion of the Supreme Court



Then and Now

- **In the beginning**: federal courts seen as the “least dangerous” branch; Hamilton believed judicial review necessary though it is not in the Constitution
- **Today**: the political leanings of judicial nominees have become a major issue in confirmation hearings
- Time from nomination to confirmation has *quintupled* from Reagan to Obama


Circuit Court Nominees
District Court Nominees
Median number of days from nomination to confirmation
350
300
250
200
150
100
50
0
56
202
83
290
42
148
65
305
61
261
55
268
54
174
28
68
Carter
Reagan
Bush
Clinton
G.W. Bush
Obama
Trump
Biden
Number of appointees

Federal Court Appointments, Time from Nomination to Confirmation

THE JUDICIAL POWER

Article III: Section 1

The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish.

- ***Judiciary Act of 1789***
  - Provided the framework for the federal judicial system
  - Established districts courts
  - Established circuit courts

Judicial Review

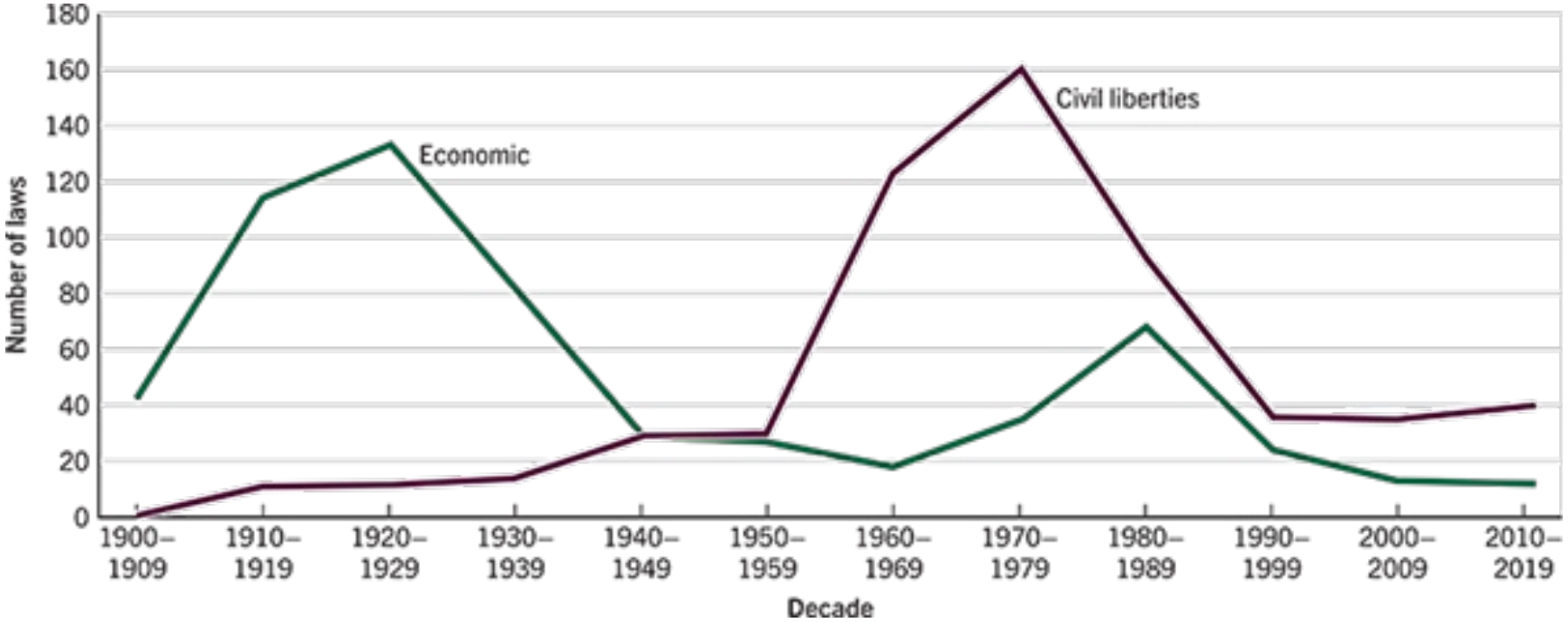
- **Judicial Review**: *The power of the courts, as part of the system of checks and balances, to look at actions taken by the other branches of government and the states and determine whether they are constitutional*
- *Not in the Constitution*
- ***Marbury v. Madison*** (1803)
  - Established the courts' power of judicial review and the first time the Supreme Court ruled an act of Congress to be unconstitutional
  - *it is emphatically the province and duty of the judicial*

National Supremacy and Slavery

- The nation-state relationship was defined early on: **federal law is supreme to state law**
- *McCulloch v. Maryland* (1819): read the *Necessary and Proper Clause* broadly to uphold the national bank
- *Dred Scott v. Sandford* (1857): Chief Justice Roger Taney denied citizenship to enslaved people and their descendants

Government, the Economy, and Political Liberty

- For roughly 40 years the Court invoked the 14th Amendment to block many economic regulations
- At the same time, it read the 14th and 15th Amendments *narrowly* — undermining prospects for racial equality
- FDR threatened to “pack the Court” after it repeatedly struck down New Deal legislation


180
160
140
120
100
80
60
40
20
0
Number of laws
Economic
Civil liberties
1900–1909
1910–1919
1920–1929
1930–1939
1940–1949
1950–1959
1960–1969
1970–1979
1980–1989
1990–1999
2000–2009
2010–2019
Decade

Economics and Civil Liberties Laws Overturned by the Supreme Court, 1900–2020

Judicial Precedent

> *Adherence to precedent must then be the rule rather than the exception if litigants are to have faith in the even-handed administration of justice in the courts*

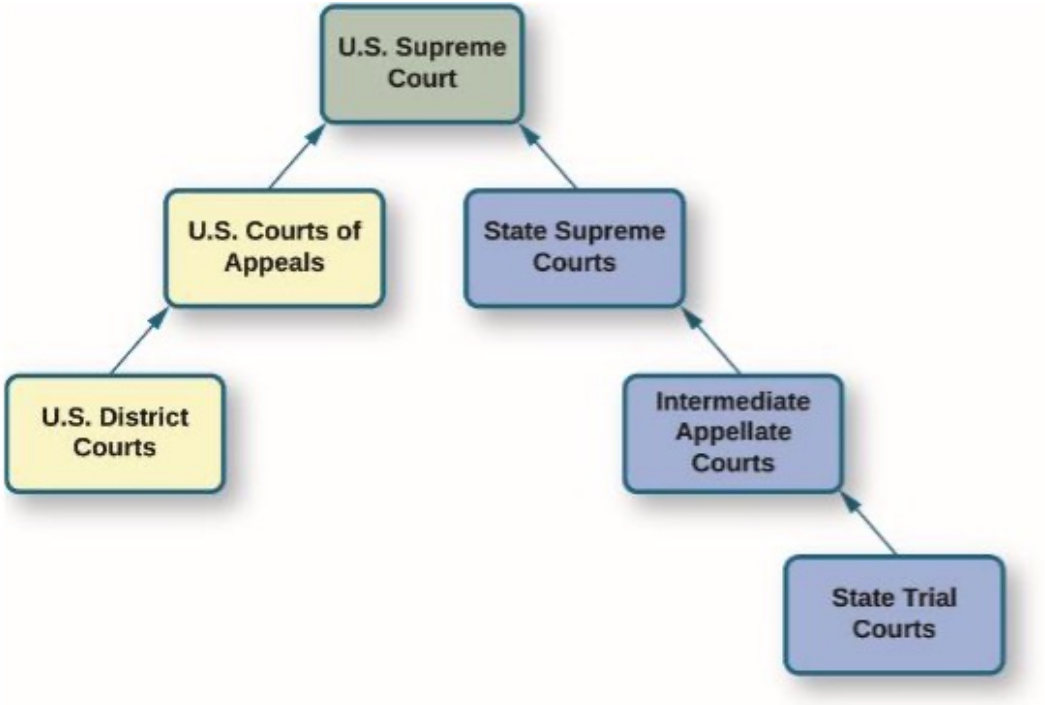
- Former Supreme Court Justice Benjamin Cardozo

- ***Stare decisis***: Latin for *stand by things decided*
- ***Common Law***: the pattern of law developed by judges through case decisions largely based on precedent
- *The consistency of precedent ensures greater certainty and stability in law and constitutional interpretations*

The Dual Court System

- The dual court system represents courts at both the national and state levels
- Both levels have three basic tiers consisting of *trial courts*, *appellate courts*, and *courts of last resort*

The Dual Court System



The Dual Court System

State Courts	Federal Courts
Hear most day-to-day cases, covering 90 percent of all cases	Hear cases that involve a “federal question,” involving the Constitution, federal laws or treaties, or a “federal party” in which the U.S. government is a party to the case
Hear both civil and criminal matters	Hear both civil and criminal matters, although many criminal cases involving federal law are tried in state courts
Help the states retain their own sovereignty in judicial matters over their state laws, distinct from the national government	Hear cases that involve “interstate” matters, “diversity of citizenship” involving parties of two different states, or between a U.S. citizen and a citizen of another nation (and with a damage claim of at least $75,000)

The Federal Courts

District Courts

- There are ninety-four U.S. district courts
- These are trial courts of the national system, in which federal cases are tried. No district court crosses state lines and a single judge oversees each one
- Some cases are heard by a jury and some are not

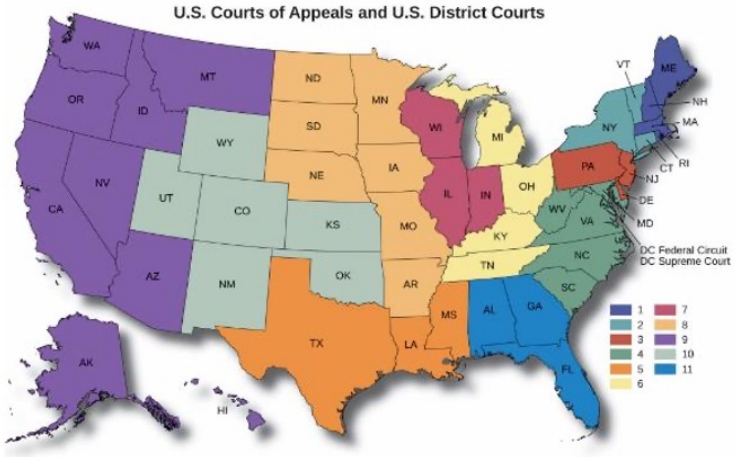
The Federal Courts

Court of Appeals

- There are *thirteen* courts of appeals or circuit courts
- Each court is overseen by a rotating panel of three judges who do not hold trials but instead review the rulings of the trial courts within their area

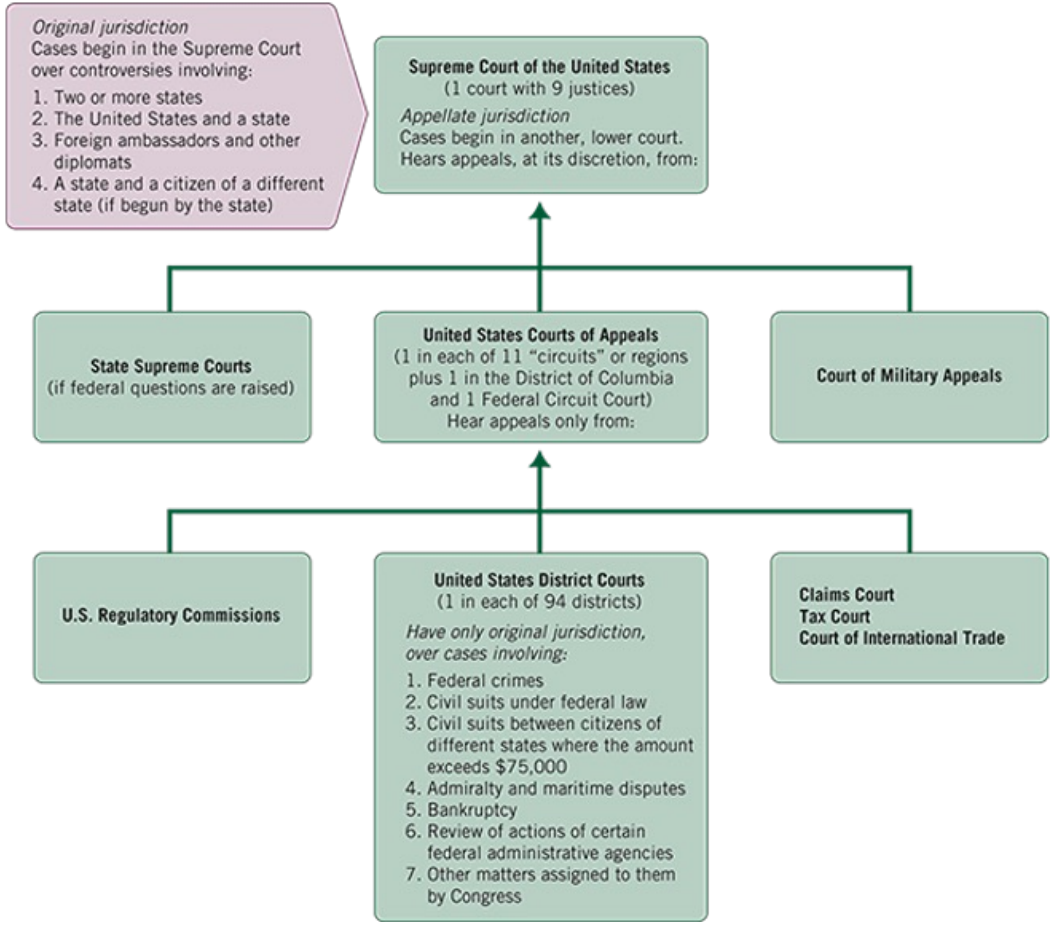
The Federal Courts

Court of Appeals



The Federal Courts

Jurisdiction



Jurisdiction of the Federal Courts

- **Federal question cases**: cases concerning the Constitution, federal laws, or treaties
- **Diversity cases**: cases involving citizens of different states
- A defendant may sometimes be tried in both state and federal court for the same offense
- State cases can be appealed to the Supreme Court in some instances

Constitutional Courts vs. Legislative Courts

Constitutional Courts

- District courts
- Courts of appeals
- Judges have lifetime tenure (Article III)

Legislative Courts

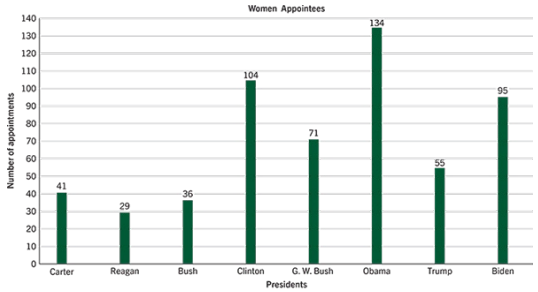
- Court of military appeals
- Territorial courts
- Judges do not enjoy Article III protections

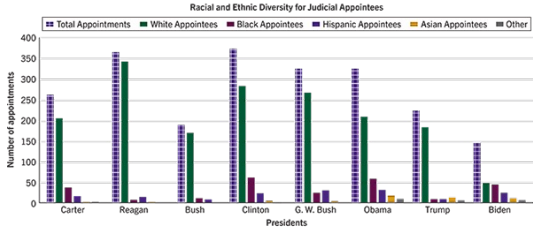
Selection of Federal Judges

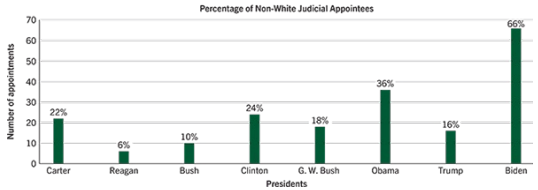
- At the federal level, the president nominates a candidate to a judgeship
- The president's nominee is then discussed in the *Senate Judiciary Committee*
- After a committee vote, the candidate must be confirmed by a **majority** vote of the full Senate
- Finally, he or she is sworn in, taking the oath of office
- All judges and justices in the national courts serve lifetime terms of office

Selecting Judges

- Party background can impact judicial decisions — but case facts, precedent, and legal argument still matter
- Presidents find it hard to predict how appointees will behave once confirmed
- **Senatorial courtesy** and **“blue slips”**: home-state senators can effectively veto a nominee
- The **“litmus test”**: screening nominees for a firm position on a single high-salience issue before nomination


Women Appointees
Number of appointments
Presidents
Carter
Reagan
Bush
Clinton
G. W. Bush
Obama
Trump
Biden
41
29
36
104
71
134
55
95


Racial and Ethnic Diversity for Judicial Appointees
Total Appointments
White Appointees
Black Appointees
Hispanic Appointees
Asian Appointees
Other
Number of appointments
Presidents
Carter
Reagan
Bush
Clinton
G. W. Bush
Obama
Trump
Biden


Percentage of Non-White Judicial Appointees
Number of appointments
Presidents
Carter
Reagan
Bush
Clinton
G. W. Bush
Obama
Trump
Biden
22%
6%
10%
24%
18%
36%
16%
66%

Gender, Race, and Ethnicity in Federal Judicial Appointments, 1980–2023

THE SUPREME COURT

Structure of the Supreme Court

- **The Supreme Court has nine justices**
  - There is one chief justice, the highest-ranking judge on the Court
  - There are eight associate judges
  - All nine serve lifetime terms
- As the national court of last resort for all other courts in the system, the Supreme Court plays a vital role in setting standards of interpretation that the lower courts follow
- The Supreme Court's decisions are binding across the

History of the Supreme Court

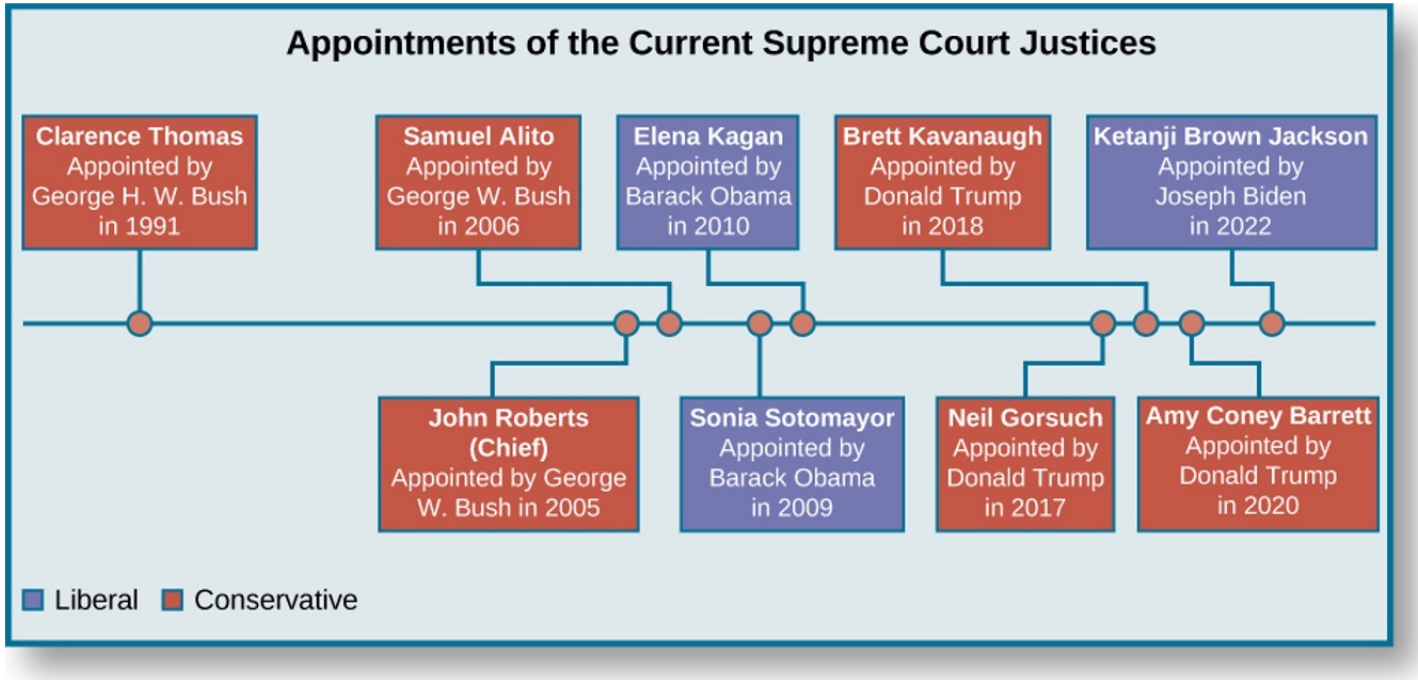
- The Constitution does not set the size of the Court; **Congress decides** how many justices there are
- The **Judiciary Act of 1789** created a Court of **six** justices
- The size changed **seven times** between 1801 and 1869, often for political reasons:
  - 1801: a lame-duck Federalist Congress cut the Court to five to deny Jefferson an appointment (quickly repealed)
  - The Court grew to 7 (1807), 9 (1837), and 10 (1863) as new federal circuits were added



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The nine justices of the Supreme Court

Appointments to the Court



Controversial Appointments to the Court

Abe Fortas (1968)

- Fortas was already an associate justice and a close adviser to President Lyndon Johnson
- In 1968, the lame-duck Johnson nominated him to replace Chief Justice **Earl Warren**
- Republicans and southern Democrats objected to:
  - **Cronyism**: Fortas kept advising Johnson while sitting on the Court
  - The liberal rulings of the Warren Court
  - A $15,000 speaking fee funded by private business interests
- Opponents **filibustered** the nomination, and a vote to

Robert Bork (1987)

- Nominated by Reagan to replace swing justice Lewis Powell
- A prominent **originalist** critic of *Roe v. Wade* and of the Court's privacy and civil rights rulings
  - As solicitor general, he fired Watergate special prosecutor Archibald Cox (the "Saturday Night Massacre," 1973)
- Sen. Ted Kennedy attacked the nomination within an hour: "Robert Bork's America is a land in which women would be forced into back-alley abortions…"
- **Rejected 42–58**, the first nomination defeated mainly

Clarence Thomas (1991)

- Nominated by G.H.W. Bush to replace **Thurgood Marshall**, the first Black justice
- Law professor **Anita Hill**, who had worked for Thomas at the EEOC, testified that he had **sexually harassed** her
- Thomas denied the allegations and called the hearings "a **high-tech lynching** for uppity Blacks"
- The Judiciary Committee (chaired by Joe Biden) deadlocked 7–7
- **Confirmed 52–48**, then the narrowest margin in a century

Harriet Miers (2005)

- George W. Bush nominated Miers, his **White House counsel**, to replace **Sandra Day O'Connor**
- Miers had never been a judge and had little public record on constitutional issues
- The strongest opposition came from **conservatives** in Bush's own party:
  - They questioned her qualifications and her commitment to a conservative judicial philosophy
  - Critics also charged **cronyism**
- Senators of both parties called her answers to the

Merrick Garland (2016)

- Justice Antonin Scalia died in February 2016, nine months before the presidential election
- Obama nominated **Merrick Garland**, a moderate appeals court judge
- Majority Leader Mitch McConnell refused to hold hearings or a vote: “The American people should have a voice in the selection of their next Supreme Court Justice”
- The nomination expired after **293 days**
- Trump filled the seat with **Neil Gorsuch** in 2017, after

Brett Kavanaugh (2018)

- Nominated by Trump to replace **Anthony Kennedy**, the Court's swing vote
- **Christine Blasey Ford** testified that Kavanaugh had sexually assaulted her when they were in high school
- Kavanaugh angrily denied the allegation, calling the process "a calculated and orchestrated political hit"
- **Confirmed 50–48**, the closest Supreme Court vote since 1881

Amy Coney Barrett (2020)

- Justice **Ruth Bader Ginsburg** died on September 18, 2020, about seven weeks before the presidential election
- Trump nominated Barrett, a Notre Dame law professor and appeals court judge, within days
- **Confirmed 52–48** on October 26, just **eight days before Election Day**
  - No Democratic votes; the first justice since 1869 confirmed with no votes from the minority party
- Critics pointed to the Garland precedent; McConnell argued 2020 was different because the **same party**

Selection of Cases

- The Court accepts fewer than two percent of as many as ten thousand cases it is asked to review every year
- Four of the nine judges must vote to accept a case; this is called the *Rule of Four*
- A petitioner asks the Supreme Court to grant a *writ of certiorari*, a request that the lower court send up its record of the case
- The *solicitor general* decides which cases should be appealed from the lower courts and personally approves each one presented

Getting to Court

- Extremely difficult to have a case heard before the Supreme Court — and usually very costly
- **In forma pauperis**: allows indigent petitioners to proceed without paying standard court fees
- Interest groups (ACLU, NAACP) may adopt or mobilize a case they see as important
- **Fee shifting**: lets a winning plaintiff recover costs from the defendant
- Cases must have **standing**; **class action suits** let many similarly situated citizens benefit from one case

Standing

- **Standing**: the legal right to bring a lawsuit
- Courts only hear real **cases and controversies** (Article III), not hypothetical questions
- To have standing, a plaintiff must show:
  - **Injury**: they suffered (or will suffer) actual harm, not just disagreement with a policy
  - **Causation**: the harm was caused by the party being sued
  - **Redressability**: a court ruling can fix the harm
- Standing lets courts **avoid cases** and leave political questions to the elected branches

Court Procedures

- Once a case has been placed on the docket, *briefs*, or short arguments explaining each party's view of the case, must be submitted
  - *Amicus curiae* (friend of the court) briefs are filed by interested outsiders
  - After initial briefs have been filed, both parties may file subsequent briefs in response to the first

Court Procedures

- The Court hears oral arguments from October through April
  - During oral arguments, each side's lawyers have thirty minutes to make their legal case
- When oral arguments have been concluded, the justices have to decide the case
  - *Conference*: held in private twice a week when the Court is in session
    - The chief justice speaks about the case and then each justice speaks in turn, in descending order of seniority, ending with the most recently appointed justice

Court Opinions

- ***Majority opinion***
  - The published majority opinion explains the justices' decision
- ***Dissenting opinion***
  - Written by any justice who disagrees with the majority opinion
- ***Concurring opinion***
  - Written by any justice who agrees with the outcome of the case but not with the majority's reasoning in it
- ***Court opinion sets precedent for the future***

Court Opinions

- An individual justice's views may be influenced by:
  - How they define their role:
    - *Judicial activism*: a strong belief in the need to defend individual rights and liberties
    - *Judicial restraint*: a strong belief in deferring decisions to the elected branches
  - Their personal beliefs and political attitudes
  - Public opinion

Judicial Philosophy

- **How should judges read the Constitution and laws?**
- **Textualism**: apply the *plain meaning of the words* in the text, not what lawmakers intended or hoped to achieve
- **Originalism**: interpret the Constitution according to its *original public meaning* at the time it was ratified
  - Associated with Justices Scalia, Thomas, Gorsuch, and Barrett
- **Living Constitution**: the Constitution's broad principles (liberty, equal protection, "cruel and unusual") should be *applied to modern conditions* the framers could not

Power to Make Policy

- Justices make policy when they reinterpret laws or the Constitution — and through the *remedies* they impose
- Many federal laws have been declared unconstitutional
- The Court can change its mind about prior rulings, or let them stand (*stare decisis*)
- The Court can involve itself with **political questions** — issues it could instead leave to the elected branches
- Supreme Court decisions are the law of the land, even when a dispute began at the local level

Checks on Judicial Power

- Judges cannot enforce their own decisions — they depend on the executive and legislature
- Congress may **impeach** judges
- Congress can alter the makeup of the courts
- New constitutional amendments may (rarely) overturn a decision
- Laws can be rewritten to survive judicial review later

THE SHADOW DOCKET

Two Paths to the Court

- The traditional **merits docket**: certiorari granted, fully briefed, argued in open court, resolved by signed opinions
- The **emergency docket**: asking the Court to freeze a lower-court ruling or government policy while an appeal proceeds
- The **“shadow docket”**: substantive emergency-docket rulings — typically unsigned, minimally briefed, with little or no explanation

A Milestone

- In the term ending October 2025, the Court issued **63 substantive shadow-docket orders** versus **56 signed merits decisions** — shadow-docket rulings outnumbered the traditional docket for the first time in modern history
- Only **17%** of shadow-docket votes had any public record of a vote or opinion at all
- Use has grown sharply: the Obama and Bush administrations together filed 8 emergency petitions across 16 years; the Trump administration filed 32 in

Why It Matters

- Consequential rulings decided with little or no public reasoning — e.g., limits on nationwide injunctions, and interim orders reshaping congressional maps mid-election
- Justice Kagan (2021): shadow-docket decisionmaking "every day becomes more unreasoned, inconsistent, and impossible to defend"
- Justice Jackson (2026): "We cannot expect the public to have faith in our judicial system if… we consistently green-light harmful acts that do real damage"